

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GEORGE PERRY,

Petitioner

VS.

EMELIE TORRES-ESLABON PERRY,

Respondent

) Case Number: FDI-25-801464

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE BIFURCATION AND TAX FILING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner George Perry and Respondent Emelie Torres-Eslabon Perry.
- 2) On 7/15/26, Petitioner filed a Request for Order seeking determination of the date of separation (as 2/17/25) and a court order requiring the parties to jointly file their 2025 tax returns.
- 3) On 8/21/26, Respondent filed a Responsive Declaration disputing the date of separation (Respondent contends the date of separation is 6/11/25) and agreeing to jointly file 2025 tax returns.

B. Findings and Order

- 1) The Court finds there are material facts in dispute regarding the date of separation. The Court therefore reserves jurisdiction over Petitioner's request for determination of the date of separation to trial. Either party may request to bifurcate trial on the issue of the date of separation if resolution is likely to simplify other issues. See California Rules of Court, rule 5.390.
- 2) The Court finds Petitioner's request for an order requiring the parties to jointly file their 2025 tax returns is MOOT as Respondent agrees to do so.

1 3) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

2 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
3 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
4 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
5 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
6 proposed order after hearing directly to the court. Failure to submit the order after hearing within
7 10 days may allow the other party to prepare a proposed order and submit it to the court in
8 accordance with CA Rules of Court, Rule 5.125(d).